ARTICLE 5. To see if the Town will vote to amend the Winchester Zoning Bylaw by amending Section 7.3.15.2 to eliminate the Center Business District Review Subcommittee and provide instead for concurrent design review by the Design Review Committee and historical review by the Historical Commission, each submitting its own report to the Special Permit Granting Authority; and by amending Section 7.3.17.5 to remove the reference to the CBD Review Subcommittee; all as set forth below; or take any other action in relation thereto.

Text to be added is indicated by underlined text and text to be removed is indicated by ~~strikethrough text~~.

1. Amend Section 7.3.15.2 by removing the Center Business District Review Subcommittee and providing for design review by the Design Review Committee and historical review by the Historical Commission. All remaining text is unchanged.

3. ~~CBD Review Subcommittee (CBDRS).~~ Design Review and Historical Review.

The SPGA shall consult with ~~the CBDRS, which consists of three (3) members of~~ the Winchester Design Review Committee~~,~~ and ~~three (3) members of~~ the Winchester Historical Commission on all projects that require design review within the CBD. ~~For any project review, 5 members must be present at the hearing or meeting. If the structure in question is considered historically significant according to the map in Section 7.3.18.1, 3 members from the Historic Commission and 2 members of the Design Review Committee shall constitute the Subcommittee. If the structure in question is not considered historically significant according to the map in Section 7.3.18.1, 2 members from the Historic Commission and 3 members of the Design Review Committee shall constitute the Subcommittee. The Subcommittee members shall be appointed annually by each respective committee/commission and each chair may designate an alternate member in cases of scheduling conflicts.~~ The Design Review Committee and the Historical Commission shall conduct their respective reviews concurrently.

~~The CBDRS~~ Each of the Design Review Committee and the Historical Commission shall make recommendations in the form of a report to the SPGA on how the project meets or could meet the design guidelines located in 7.3.17. If no report is received by the SPGA from either the Design Review Committee or the Historical Commission within thirty-five (35) days from the time of a complete filing from an applicant, it shall be deemed a lack of opposition to the project by whichever of them fails to submit such report. ~~An additional report may be written by either committee/commission and submitted to the SPGA within thirty-five (35) days from the time of a complete filing from an applicant.~~

The SPGA shall make no final decisions until thirty-five (35) days have elapsed from the time of a complete filing from an applicant, or a report has been received from both the Historical Commission and the Design Review Committee, whichever comes first.

2. Amend Section 7.3.17.5 by removing reference to the CBD Review Subcommittee in subsection 1, Materials. All remaining text is unchanged.

1. Materials. All new buildings should be mainly faced with an authentic New England town style or equal~~, reviewed and recommended by the CBD Review Subcommittee~~. The highest quality of materials shall be used at the pedestrian level of all buildings;

(Planning Board)

MOTION: MOVED AND SECONDED that the Town approve Article 5 as printed in the Warrant.

BACKGROUND: *When Town Meeting adopted the Center Business District bylaw (Section 7.3) in 2015, in an effort to streamline the approval process in the CBD, it created the Center Business District Review Subcommittee (CBDRS) to give the Planning Board a single opinion from the Design Review Committee and the Historical Commission. Nothing in the bylaw prevents the two boards from issuing their own independent opinions on applications, and both boards have continued to advise the Planning Board separately. Additionally, scheduling the CBDRS meetings has proved difficult, sometimes impossible when timely advice was needed. The subcommittee has become redundant and superfluous. Removing it from the bylaw means one fewer meeting for applicants. This article removes the CBDRS entirely from*

the bylaw while retaining the advisory roles of both boards, each of which has voted to support the change.

For example, picture a business owner who wants to renovate a storefront in Winchester Center. Today, the plans go to the Design Review Committee, then the Historical Commission, and then a third group, the CBDRS, which is made up of members of those same two boards. That third meeting has been hard to schedule, which can hold up a project. After this change, the owner still meets with the Design Review Committee and the Historical Commission, and each still sends its advice to the Planning Board. The expert review stays the same, with one fewer meeting.

2/3rd Vote Required